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Case Number: 25STCV02725 Hearing Date: July 16, 2026 Dept: 529

SAMHO TOUR, INC. v. A-JU TOURS,
INC.

MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR
PRODUCTION OF DOCUMENTS (SET TWO)

Date of Hearing: 7/16/26 Trial Date: 11/23/26

Department: 529 Case

No.: 25STCV02725

Moving Party: Defendant

A-Ju Tours, Inc.

Responding Party: Plaintiff Samho Tour, Inc.

BACKGROUND

On January 31, 2025, Plaintiff Samho Tour, Inc. ("Plaintiff") filed the operative Complaint against Defendant A-Ju Tours, Inc. ("Defendant"), alleging a sole cause of action for violation of Unfair Competition. The Complaint alleges that Defendant advertised and listed a price for a product or service that did not include all required fees or charges in violation of California Business and Professions Code Section 17200. (Compl., ¶39.) The Complaint further alleges that Defendant failed to pay its workers the required minimum wages and for overtime hours worked, thus avoiding proper and full payment of unemployment insurance, workers' compensation insurance premiums, social security tax, and Medicare tax in violation of

California Business and Professions Code Section 17200. (Id.)

On April 7, 2025, Defendant filed an Answer to the Complaint and the operative Cross-Complaint against Plaintiff, alleging causes of action for: (1) violation of California Business and Professions Code Section 17200; and (2) violation of California False Advertising Law - Business and Professions Code Section 17500.

On May 9, 2025, Plaintiff filed an Answer to the Cross-Complaint.

On June 16, 2026, Defendant filed the instant Motion to Compel Further Responses to Request for Production of Documents (Set Two). On July 2, 2026, Plaintiff filed an Opposition. On July 9, 2026, Defendant filed a Reply.

[Tentative] Ruling

Defendant A-Ju Tours, Inc.'s Motion to Compel Further Responses to Request for Production of Documents (Set Two) is GRANTED in part. The request for sanctions is also DENIED.

Plaintiff Samho Tour, Inc. is ordered to provide further, verified and objection-free responses and produce responsive documents to Request for Production of Documents (Set Two) nos. 71-133, 134-173, and 174-175 within 30 days of this order.

LEGAL STANDARD

A party who receives a demand for production, i.e., a demand for inspection, copying, testing, etc. must respond separately to each individual item requested with either a statement indicating compliance, a statement that the party lacks the ability to comply, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).)

A party may then move for a further response to requests for production of documents where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2031.310, subd. (c).)

Finally, California Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) ٢٢

ANALYSIS

Defendant moves for an order compelling Plaintiff to provide further responses to Defendant's Request for Production of Documents ("RFP") (Set Two) nos. 71-133, 134-173, and 174-175 on the grounds that these requests are reasonably calculated to lead to discovery of admissible evidence pertaining to (1) the parties competing unfair competition law violation claims, especially, Defendant's unclean hands defense; and (2) Plaintiff's representation to the United States government that was a transportation company versus a tour company to obtain a \$7.5 million grant.

In opposition, Plaintiff admits that the "TOUR DOCUMENTS" requested per RFP nos. 71-133 are relevant to the claims and defenses advanced by the parties in this action. (Opp. at 2:17-19.) However, Plaintiff argues that the burden imposed by these requests is significant because it requires production of documents in many different forms including cash register receipts, invoices, restaurant bills, receipts from National Parks or hotels, and handwritten records. (Id. at 3:9-12.) Essentially, Plaintiff contends it would take dozen of hours to locate and assemble these records. (Shin Decl., ¶5.) An objection on the basis of "burden must be sustained by evidence showing the quantum of work required" and "to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought." (West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 417.) The court agrees that the requests are overbroad and burdensome. Defendant is not entitled to "all documents" relating to this tours, but only to records of the hours worked by its employees on those tours and the wages earned, as

well as any document calculating the net revenue or profit from each tour, if such calculations are made for each tour.

Plaintiff is ordered to produce these documents within 30 days.

Plaintiff also concedes that the “EMPLOYMENT RECORDS” requested per RFP nos. 134-173 are relevant to the parties claims and counterclaims in this action. (Opp. at 3:21-4:6.) On the other hand, Plaintiff asserts that it does not keep expense reports submitted by its tour guides or bus drivers, therefore, the only way to comply is to search thousands of tour records conducted in 2024 and 2025 to determine which tours the 41 workers submitted expense reports for, which could take over a hundred hours if not more. (Id. at 4:5-14.) The court agrees that the requests are overly broad and harassing and would invade the privacy rights of third parties (the employees). Plaintiff is to provide records reflecting all hours worked by these employees and sums paid to them, whether as wages or reimbursements. Such records to be produced within 30 days.

With respect

to RFP nos. 174-175, which seeks applications and supporting documentation submitted by Plaintiff to obtain “CERTS” a/k/a Coronavirus Economic Relief for Transportation Services grant in 2021, Plaintiff objected on the grounds that they are irrelevant to any of the claims or defenses in this action. Contrarily, Defendant indicates that these documents relate to its unclean hands defense and “CERTS” does not have to be mentioned specifically in Defendant’s Answer. (See *Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 “[t]he scope of examination should not be limited unless the information sought is clearly privileged or irrelevant, and inquiry should not be limited to matter relevant only to the precise issues presented by the pleadings.’ ”.)

Accordingly,

Defendant has demonstrated that further responses to the RFPs at issue are warranted.

Request for Monetary Sanctions

Pursuant to Code of Civil Procedure

Section 2031.310, subdivision (h), “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party,

person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Here, Defendant requests \$10,523.41 against Plaintiff consisting of: (1) 1.0 hr attempting to meet and confer; (2) 7.0 hours preparing the motion and separate statement; (3) 3.0 hours reviewing the opposition, preparing the reply, and attending the hearing at an hourly rate of \$950.00 plus \$73.41 filing fee. (Florence Decl., ¶8.) The court finds that plaintiff’s position was substantially justified in opposing these requests and denies the request for sanctions.

SAMHO TOUR, INC. v. A-JU TOURS,
INC.

MOTION TO COMPEL compliance with deposition subpoena

Date of Hearing: 7/16/26 Trial Date: 11/23/26

Department: 529 Case
No.: 25STCV02725

Moving Party: Plaintiff
Samho Tour, Inc.

Responding Party: Non-Party Mutual Trans, Inc.

BACKGROUND

On January 31, 2025, Plaintiff Samho Tour, Inc. (“Plaintiff”) filed the operative Complaint against Defendant A-Ju Tours, Inc. (“Defendant”), alleging a sole cause of action for violation of Unfair Competition. The Complaint alleges that Defendant advertised and listed a price for a product or service that did not include all required fees or charges in violation of California Business and Professions Code Section 17200. (Compl., ¶39.) The Complaint further alleges that Defendant failed to pay its workers the required minimum wages and for overtime hours worked, thus avoiding proper and full payment of unemployment insurance, workers’ compensation

insurance premiums, social security tax, and Medicare tax in violation of California Business and Professions Code Section 17200. (Id.)

On April 7, 2025, Defendant filed an Answer to the Complaint and the operative Cross-Complaint against Plaintiff, alleging causes of action for: (1) violation of California Business and Professions Code Section 17200; and (2) violation of California False Advertising Law - Business and Professions Code Section 17500.

On May 9, 2025, Plaintiff filed an Answer to the Cross-Complaint.

On May 26, 2026, Plaintiff filed the instant Motion to Compel Compliance with Deposition Subpoena. On June 10, 2026, Non-Party Mutual Trans, Inc. On June 16, 2026, Plaintiff filed a Reply.

[Tentative] Ruling

Plaintiff Samho Tour, Inc.'s Motion to Compel Compliance with Deposition Subpoena is GRANTED.

LEGAL STANDARD

A motion to compel compliance with a deposition subpoena may be sought under either Code of Civil Procedure §§ 1987.1 or 2025.480. "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).) "The following persons may make a motion pursuant to subdivision (a): [¶](1) A party. [¶](2) A witness. [¶](3) A consumer described in Section 1985.3. [¶](4) An employee described in Section 1985.6. [¶](5) A person whose personally identifying information, as defined in subdivision (b) of Section 1798.79.8 of the Civil Code, is sought in connection with an underlying action involving

that person's exercise of free speech rights." (Code Civ. Proc., § 1987.1, subd. (b).)

ANALYSIS

Plaintiff moves to compel Non-Party

Mutual Trans, Inc.'s ("MTI") compliance with the deposition subpoena served on April 9, 2026 on the grounds that MTI is a participant or witness to Defendant's alleged unlawful and unfair business practices because MTI provides Defendant with buses and bus drivers for its tours, thus the entities operate as a single enterprise. (Mot. at 4:20-25.) In opposition, MTI argues that the subpoena is overbroad and irrelevant because it is based on an unpleaded theory that it is a single enterprise with Defendant. (Opp. at 6:21-24.)

Here, it is undisputed that MTI provides transportation services, which includes providing Defendant with buses and bus drivers needed to operate Defendant's tours. (Seror Decl., ¶12.) It also undisputed that the theory of "single enterprise" or alter ego is not pleaded in the operative Complaint. (Reply at 2:15-16.) Nevertheless, California courts have held that "[t]he scope of examination should not be limited unless the information sought is clearly privileged or irrelevant, and inquiry should not be limited to matter relevant only to the precise issues presented by the pleadings." (Pacific Tel. & Tel. Co. v. Superior Court (1970) 2 Cal.3d 161, 173 [emphasis added].) Thus, whether or not these claims were pleaded are inapposite for purposes of discovery. The subpoena seeks documents evidencing any contracts or agreement MTI entered into with Defendant from 7/1/24 through 12/31/25; documents regarding payments MTI received from Defendant from 7/1/24 through 12/31/25; documents identifying MTI's officers and directors; and documents related to any services MTI provided to Defendant in connection to specific tours for specific dates in 2024. These documents are related to Plaintiff's claims that Defendant engages in unfair and unlawful business practices by failing to pay its workers minimum wage and overtime hours. MTI contention that these requests are overbroad and burdensome disregards that most of these requests are limited in time and scope. For example, Request for Production no. 11 seeks: "All DOCUMENTS related to any services YOU provided to A-JU in connection with a tour described as Mode Signature, which ran from November 21, 2024 through November 29, 2024 and originated in Los Angeles." (Plf. Sep. Stmt. at 31:27-32:2.) This request is limited to the Mode signature tour, which took place in Los Angeles from 11/21/24 through 11/29/24 (eight

days).

The objection regarding vagueness also fails. “[N]either ambiguity nor burden are of themselves sufficient grounds for denying the right to discovery in toto, although either may, if present in sufficient degree, constitute an abuse of the discovery process which can and should be limited or eliminated under the court’s discretionary power to make any order consistent with justice.” (Cembrook v. Superior Court In and For City and County of San Francisco (1961) 56 Cal.2d 423, 428.) “If [the court] finds some requests too ambiguous to allow intelligent reply, it may sustain objection to them or, more consistently with justice, it may order such questions to be rephrased.” (Id. at 430.) MTI has not shown that the requests are ambiguous such that it cannot find the documents requested or provide an intelligible response. With respect to the objection based on confidential information, the parties entered into a Stipulated Protective Order, which expressly contemplated and incorporates protections for confidential documents produced by non-parties subject to subpoenas in this action. (Stip. Prot. Order, 2/4/26 at ¶13.) Accordingly, Plaintiff has demonstrated that compliance with the subpoena is warranted.

CONCLUSION

Based on the foregoing, Plaintiff Samho Tour, Inc.’s Motion to Compel Compliance with Deposition Subpoena is GRANTED.

SAMHO TOUR, INC. v. A-JU TOURS, INC.

MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET TWO)

Date of Hearing: 7/16/26 Trial Date: 11/23/26

Department: 529 Case
No.: 25STCV02725

Moving Party: Plaintiff
Samho Tour, Inc.

Responding Party: Defendant A-Ju Tours, Inc.

BACKGROUND

On January 31, 2025, Plaintiff Samho Tour, Inc. ("Plaintiff") filed the operative Complaint against Defendant A-Ju Tours, Inc. ("Defendant"), alleging a sole cause of action for violation of Unfair Competition. The Complaint alleges that Defendant advertised and listed a price for a product or service that did not include all required fees or charges in violation of California Business and Professions Code Section 17200. (Compl., ¶39.) The Complaint further alleges that Defendant failed to pay its workers the required minimum wages and for overtime hours worked, thus avoiding proper and full payment of unemployment insurance, workers' compensation insurance premiums, social security tax, and Medicare tax in violation of California Business and Professions Code Section 17200. (Id.)

On April 7, 2025, Defendant filed an Answer to the Complaint and the operative Cross-Complaint against Plaintiff, alleging causes of action for: (1) violation of California Business and Professions Code Section 17200; and (2) violation of California False Advertising Law - Business and Professions Code Section 17500.

On May 9, 2025, Plaintiff filed an Answer to the Cross-Complaint.

On June 22, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Request for Production of Documents (Set Two). On July 2, 2026, Defendant filed an Opposition. On July 9, 2026, Plaintiff filed a Reply.

[Tentative] Ruling

Plaintiff Samho Tour, Inc.'s Motion to Compel Further Request for Production of Documents (Set Two) is GRANTED. The request for sanctions is also GRANTED.

Defendant A-Ju Tours, Inc. is ordered to provide further, verified and objection-free responses to Request for Production of Documents (Set Two) nos. 47 through 49 within 30 days of this order.

Defendant A-Ju Tours, Inc. is also ordered to pay \$2633.00 in monetary sanctions to Plaintiff Samho Tour, Inc. within 30 days of this order.

LEGAL STANDARD

A party who receives a demand for production, i.e., a demand for inspection, copying, testing, etc. must respond separately to each individual item requested with either a statement indicating compliance, a statement that the party lacks the ability to comply, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).)

A party may then move for a further response to requests for production of documents where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2031.310, subd. (c).)

Finally, California Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) ٢٢

EVIDENTIARY

OBJECTIONS

Defendant objections to paragraphs 2, 8, and attorney's fees paragraphs 1 and 3 in the declaration of Matthew L. Seror in support of Plaintiff's compel further motion. Objections based on lack of foundation, hearsay, and lack of personal knowledge should be overruled unless there is a reason to believe that a witness, including an expert witness, would not be able to lay a foundation and authenticate these facts at trial. (See Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-948.) Thus, Defendant's objections are OVERRULED.

ANALYSIS

Plaintiff

moves for an order compelling Defendant to provide further responses and responsive documents to Plaintiff's Request for Production of Documents (Set Two) nos. 47, 48, and 49 on the grounds that these requests seek information (1) regarding the scope and nature of the relationship between Defendant and Mutual Trans, Inc. ("MTI"); and (2) whether Defendant outsources its unlawful and unfair business practice of underpaying its bus drivers to MTI. (Mot. at 8:20-9:9, Seror Decl., ¶14, Ex. G.)

In opposition, Defendant argues that

these requests are not narrowly tailored to discovering evidence regarding driver compensation and are cumulative and duplicative of the discovery Plaintiff seeks from MTI via subpoena. (Opp. at 4:1-23.) However, the purpose for which Plaintiff seeks these documents from Defendant is to discover admissible evidence related to whether or not MTI and Defendant truly have a "vendor-vendee" relationship as opposed to a "alter ego" or "single enterprise" type of relationship, wherein Defendant's interrogatory answers contend that the former is true. Likewise, there is no guarantee that the documents that Defendant has in its possession that are responsive to these requests are identical to documents MTI has in its possession. Therefore, Plaintiff has shown that good cause exists to seek these documents.

Request for Monetary Sanctions

Pursuant to Code of Civil Procedure

Section 2031.310, subdivision (h), "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Here, Plaintiff requests \$3,507.00 against

Defendant consisting of: (1) 0.45 hours revising and reviewing the motion; (2) 2.0 hours reviewing the opposition, preparing the reply brief, and attending the hearing at an hourly rate of 740.00 for Mr. Seror; and (3) 12.4 hours researching, drafting, and preparing the

instant motion by Lauren Kilger at an hourly rate of \$205.00. To the extent that Mr. Seror is Ms. Kilger's superior, it is common practice to attest her attorney's fees request and Defendant's cite to no case or statutory law prohibiting such conduct. While the court finds the hourly rates reasonable, the amount to time spent by Kilger is not. The court reduces the sanction to reflect 4 hours of Kilger's time as the reasonable amount to spend on this simple motion.

Accordingly, the Court awards monetary sanctions in the amount of \$2633.

CONCLUSION

Based on the foregoing, Plaintiff Samho Tour, Inc.'s Motion to Compel Further Request for Production of Documents (Set Two) is GRANTED. The request for sanctions is also GRANTED.

Defendant A-Ju Tours, Inc. is ordered to provide further, verified and objection-free responses to Request for Production of Documents (Set Two) nos. 47 through 49 within 30 days of this order.

Defendant A-Ju Tours, Inc. is also ordered to pay \$2633 in monetary sanctions to Plaintiff Samho Tour, Inc. within 30 days of this order.